

Tentative Rulings
July 8, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

15. *Midland v. Mills*, Case No. CIVDS1915848

Defendant's Motion to Vacate Judgment

7/8/26, 9:00 a.m., Dept. S-17

The Court would **DENY**.

This matter was initially filed against Defendant on May 22, 2019. A proof of service was filed on June 27, 2019, and a default judgment was taken on November 16, 2020. Now, in the light of collection efforts, Defendant filed a single, hand-written document titled Motion to Vacate Judgment. The document simply asserts "lack of notice" but is not supported by declaration or any other tangible evidence.

The instant motion, however, appears to be attempting to assert that the service that occurred almost six years ago was somehow improper. That argument requires a motion to quash service. However, even if viewed through that lens, the service was effectuated by a registered process server on a party who is identified as Plaintiff's "Co-resident". (Proof of Service, filed June 27, 2019.) When service is done by a registered process server, there is a rebuttable presumption as to the facts stated in the return. If the presumption applies, then the defendant bears the burden to produce evidence of non-service. (*American Expr. Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.) Thus, here, movant would bear the burden to produce evidence of non-service. However, no evidence has been submitted.

16. *Koppen, Jr., v. FCA US, LLC, et al*, Case No. CIVSB2427507

Defendant FCA's Motion to Compel the Deposition of Plaintiff

7/8/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** and order Plaintiff's deposition to move forward on July 10, 2026, as agreed to by the parties. Sanctions are not requested and are, therefore, not at issue.
